

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sara Griffin	Team: Squad #10	CCRB Case #: 201702515	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 03/29/2017 4:45 PM	Location of Incident: 71st Precinct stationhouse	18 Mo. SOL 9/29/2018	Precinct: 71
Date/Time CV Reported Sun, 04/02/2017 7:44 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 04/02/2017 7:44 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Gregg Licari	3219	942060	071 DET

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Mark Boyle	12921	938104	071 PCT
2. POF Marlene Welch	10748	898755	071 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Gregg Licari	Discourtesy: Detective Gregg Licari spoke discourteously to § 87(2)(b)	A . Unsubstantiated

Case Summary

On April 2, 2017, § 87(2)(b) filed this complaint with the CCRB via the online website. On March 29, 2017, at approximately 4:45 PM, § 87(2)(b) went to the 71st precinct stationhouse with his § 87(2)(b) daughter, § 87(2)(b) and his § 87(2)(b) daughter, § 87(2)(b) and § 87(2)(b) went to the stationhouse to file a complaint as § 87(2)(b) had fraudulent activity on her bank account. § 87(2)(b), § 87(2)(b) and § 87(2)(b) were brought to the Complaint Room. Upon entering the Complaint Room, Police Officer Mark Boyle of the 71st Precinct began to fill out the complaint report. PO Boyle informed § 87(2)(b) and § 87(2)(b) that he was going to get a detective to come and speak to them regarding their complaint. PO Boyle left the Complaint Room and returned a short time later with Detective Gregg Licari of the 71st Precinct Detective Squad. Detective Licari questioned § 87(2)(b) on the specifics of the fraudulent bank activity. Detective Licari allegedly accused § 87(2)(b) of being involved in the fraudulent activity. § 87(2)(b) denied any involvement in the fraudulent bank activity. Detective Licari and § 87(2)(b) began to argue regarding § 87(2)(b)'s involvement. Detective Licari allegedly told § 87(2)(b) and § 87(2)(b) that he would not be investigating the fraudulent bank activity, as he suspected § 87(2)(b) was involved. § 87(2)(b), § 87(2)(b) and § 87(2)(b) exited the Complaint Room and walked towards the lobby of the stationhouse. Detective Licari allegedly said out loud “fucking liar” (**Allegation A**), in reference to § 87(2)(b) while speaking to a nearby police officer.

There is no video footage of the incident.

No summons was issued nor arrest made.

Mediation, Civil and Criminal Histories

- § 87(2)(b) and § 87(2)(b) both rejected mediation, § 87(2)(b)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of June 20, 2017, an inquiry into the Office of the New York City Comptroller revealed no notice of claim filed by § 87(2)(b) or § 87(2)(b)

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (**Board Review 3**).
- This is § 87(2)(b)'s second CCRB complaint. § 87(2)(b)
§ 87(2)(b)
- Detective Licari has been a member of the NYPD for 10 years. Detective Licari has been the subject officer of 7 prior CCRB complaints, which involves 12 allegations. None of

the allegations were substantiated. Of the 12 prior allegations, 3 were discourteous language allegations (**Board Review 5**).

Findings and Recommendations

Allegation A -Discourtesy: Detective Gregg Licari spoke discourteously to § 87(2)(b)

It is undisputed that § 87(2)(b) and Detective Licari conversed inside the Complaint Room § 87(2)(g)

§ 87(2)(b) testified (**Board Review 6**) that upon speaking with Detective Licari in the Complaint Room, Detective Licari immediately began to accuse her of being involved in the fraudulent bank activity. § 87(2)(b) asked Detective Licari why his daughter would come to the police station to file a police report if she was involved in the fraudulent bank activity. Detective Licari insisted he had seen young females be involved in similar cases. § 87(2)(b) asked Detective Licari if he was going to help with their case or not. Detective Licari responded that there was no case. § 87(2)(b) told Detective Licari that if he wasn't going to help then he and § 87(2)(b) were going to leave. § 87(2)(b) and § 87(2)(b) exited the Complaint Room, and Detective Licari followed behind them. An unidentified officer approached Detective Licari outside the Complaint Room and asked, "What's going on?" Detective Licari said out loud to the unidentified officer, "His daughter is a fucking liar. His daughter is a fucking liar." Detective Licari was approximately 3 feet away from § 87(2)(b) and § 87(2)(b) at the time. § 87(2)(b) turned around and said, "Don't talk about my daughter like that. That is disrespectful." Detective Licari replied, "I am not talking to you. Mind your own business." A clerk behind the stationhouse desk told § 87(2)(b) to lower his voice or leave the stationhouse. § 87(2)(b) responded to the desk clerk, "How can you ask me to leave when he is being disrespectful in front of everyone in here." § 87(2)(b) and § 87(2)(b) exited the stationhouse. PO Boyle approached § 87(2)(b) and § 87(2)(b) outside the stationhouse and instructed them to come back inside the stationhouse to complete their complaint report. PO Boyle informed § 87(2)(b) and § 87(2)(b) that a new detective would be assigned to their complaint.

§ 87(2)(g)
§ 87(2)(b) alleged that when exiting the Complaint Room, Detective Licari said to the unidentified officer, "She is a fucking liar." § 87(2)(b) described a uniformed black female officer seated at the stationhouse desk as the one who instructed him to lower his voice or leave the stationhouse.

PO Boyle testified (**Board Review 8**) that he was completing the complaint report for § 87(2)(b) while she and § 87(2)(b) spoke to Detective Licari inside the Complaint Room. PO Boyle was not paying attention to their conversation, but recalled § 87(2)(b) becoming upset by Detective Licari's questions. A short time later, § 87(2)(b) and § 87(2)(b) exited the Complaint Room behind Detective Licari. There was another detective outside the Complaint Room when Detective Licari exited, however, PO Boyle did not know the identity of that detective. PO Boyle did not hear Detective Licari say "She is a fucking liar" or "His daughter

is a fucking liar. His daughter is a fucking liar” once outside the Complaint Room. PO Boyle stated he walked outside the stationhouse to see if § 87(2)(b) and § 87(2)(b) wanted to finish their complaint report. § 87(2)(b) looked “emotionally upset” but did not articulate to PO Boyle why he was upset. PO Boyle stated there was a female civilian in the Complaint Room at the same time as § 87(2)(b) and Detective Licari, waiting to have a complaint report taken. In his CCRB interview, PO Boyle provided a copy of the complaint report of the female civilian, who was identified as § 87(2)(b). PO Boyle further stated § 87(2)(b) specifically asked not to have Detective Licari assigned to her complaint.

In an unsworn telephone statement, § 87(2)(b) stated (**Board Review 9**) that she was in the Complaint room while Detective Licari interviewed § 87(2)(b) and § 87(2)(b). § 87(2)(b) described the conversation as “heated” on one-side, on part of Detective Licari. § 87(2)(b) described § 87(2)(b) and § 87(2)(b) as “calm” and Detective Licari as “unprofessional.” § 87(2)(b) took notice of the conversation between the § 87(2)(b) and Detective Licari when Detective Licari began to accuse § 87(2)(b) of being involved. § 87(2)(b) did not recall hearing Detective Licari curse or hear a verbal exchange between Detective Licari and § 87(2)(b) outside the Complaint Room, as her back was facing the Complaint Room door.

Detective Licari testified (**Board Review 10**) that he began to question § 87(2)(b) about the specifics of the fraudulent bank activity, when § 87(2)(b) became “annoyed” and stated that Detective Licari must feel like § 87(2)(b) is a “criminal.” Detective Licari replied that he wanted § 87(2)(b) to tell the truth and he did not want her filing a false police report. After 5-10 minutes of questioning, § 87(2)(b) terminated the interview and informed Detective Licari that he and § 87(2)(b) were leaving. Detective Licari believed § 87(2)(b) did not like the way he was “questioning and interrogating” his daughter. Detective Licari informed § 87(2)(b) that he would continue to investigate the fraudulent activity in § 87(2)(b)'s bank account. § 87(2)(b) and § 87(2)(b) exited the Complaint Room. Detective Licari stated he may have had a conversation with another detective or police officer outside the Complaint Room, but did not recall their identity. Detective Licari denied saying “she is a fucking liar” or “His daughter is a fucking liar. His daughter is a fucking liar.” Detective Licari did not recall if he had a verbal exchange with § 87(2)(b) outside the Complaint Room. Detective Licari denied using any profanity when speaking with § 87(2)(b) and § 87(2)(b).

Police Officer Marlene Welch testified (**Board Review 11**) that she was assigned as the Telephone Switchboard Operator on the date of the incident. PO Welch did not have an independent recollection of the incident. PO Welch did not recall a male civilian complain about a detective cursing at his daughter or acting in an unprofessional manner. PO Welch did not recall instructing a male civilian to leave the stationhouse if he did not lower his voice.

§ 87(2)(g)

it is recommended that **Allegation A** be closed as **Unsubstantiated**.

Squad: 10

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date